



POLICE DEPARTMENT

March 25, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303867 (Incident Date: September 29, 2022) regarding Police Officer Denis Cekic, Tax No. 953738 (DADS No. 2023-29353)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303867, pertaining to Police Officer Denis Cekic. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Officer Cekic would be detrimental to the Department's disciplinary process.

In this matter, Officer Cekic used discourteous language and improperly threatened to damage the complainant's property. The Police Commissioner agrees with CCRB's substantiation of the allegations against the officer. However, given Officer Cekic's lack of prior formal disciplinary history, lack of prior substantiated CCRB complaints, and in the interest of progressive discipline, the allegations against Officer Cekic would be best addressed with the imposition of a command discipline.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 27, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303867 (Incident Date: September 29, 2022) regarding Police Officer Denis Cekic, Tax No. 953738 (DADS No. 2023-29353)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 25, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Cekic would be detrimental to the Police Department’s disciplinary process. Consequently, you determined that you would be imposing a Schedule “A” Command Discipline and forfeiture of five (5) vacation days to PO Cekic in connection with the substantiated allegations, citing his lack of prior formal disciplinary history, lack of prior substantiated CCRB complaints, and in the interest of progressive discipline.

While the CCRB acknowledges that you are the final arbiter of discipline, the CCRB recommends allowing the disciplinary process to proceed. While it may be that the discipline you suggest is appropriate, that would only be true if PO Cekic accepts responsibility for the misconduct alleged. The CCRB respectfully requests that you permit the disciplinary process against PO Cekic to continue and allow the Charges and Specifications to be served upon PO Cekic.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 28, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303867 (Incident Date: September 29, 2022) regarding Police Officer Denis Cekic, Tax No. 953738 (DADS No. 2023-29353)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 27, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Denis Cekic, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Cekic for the reasons expressed in my March 25, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Cekic be issued a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office